2019 C L C Note 16

[Peshawar (Abbottabad Bench)]

Before Lal Jan Khattak, J

KHALID KHAN---Petitioner

Versus

Mst. NOREEN MUMTAZ and another---Respondents

Writ Petition No. 780-A of 2013, decided on 25th October, 2018.

Family Courts Act (XXXV of 1964)---

----S. 5 & Sched.---Suit for dissolution of marriage, custody of children and recovery of dowry articles---Ground of cruelty---Scope---Demanded for return of benefits from ex-wife given at the time of marriage---Scope---Petitioner (ex-husband) contended that as respondent (ex-wife) herself was not willing to join him so she be directed to return him the benefits she had received in consideration of marriage---Wife contended that petitioner was cruel and caused physical and mental torture---Validity---Respondent/wife had leveled so many allegations against the petitioner/husband including that once he had verbally divorced her---Respondent/wife deposed that husband used to beat her and caused her mental torture she was not ready to reside with the him as his wife---Record showed that marriage between the parties had taken place in the year 1994 and out of the wedlock they had a son and a daughter---Wife had lived with the petitioner for about 18/19 years till the decree of dissolution; she had spent her prime age in his company so depriving her of the benefits she had received from him in the year 1994 would not be fair enough---High Court observed that husband had actually compelled the wife to go for litigation for her right; had he opted to enter into a deal with her the moment suit for dissolution of marriage was filed, consequences would have been different but after a prolong litigation of seven years, it did not sound well for the petitioner to demand from the respondent to return him the benefits he had given her in the year 1994---Family Court had given sound reasons for disentitling the petitioner from said benefits---Constitutional petition was dismissed, in circumstances. [Paras. 5, 6, 7 & 8 of the judgment]

Khalid Mehmood for Petitioner.

Ms. Uzma Munawar for Respondents.

Date of hearing: 25th October, 2018.

JUDGMENT

LAL JAN KHATTAK, J.---This writ petition is directed against the judgment and decree dated 06.09.2013 of the learned Judge Family Court-II, Abbottabad whereby the petitioner's marriage with the respondent No. 1 has been dissolved.

2. Brief facts of the case are that way back in the year 1994, the parties had entered into marital bond but they could not pull on with each other as a result, the respondent filed a family suit against the petitioner seeking dissolution of her

marriage, maintenance, custody of minors and recovery of dower. During pendency of the suit, she opted to forego her demands of maintenance and custody of minors. The learned trial court after recording evidence dissolved the marital bond on the basis of cruelty and Khulla as well and held the petitioner disentitled to Zar-e-Khulla. Feeling himself aggrieved and dissatisfied with the aforesaid judgment and decree, petitioner has impugned it before this court through the instant petition.

3. Learned counsel for the petitioner contended with vehemence that on no count the respondent has proved her case for dissolution of marriage and that the petitioner is very much eager to treat her with honor and dignity as his wife. The learned counsel further argued that in case the respondent is unwilling to join the petitioner as her husband then in that eventuality she be directed to return the petitioner whatever she has received from him in consideration of her marriage.

4. Arguments heard and record gone through.

5. Perusal of the case record would show that the respondent has levelled so many allegations against the petitioner including that once he had verbally divorced her. Respondent has deposed as (PW-1) that apart from giving her verbal divorce, petitioner would beat her and also caused her mental torture. From the testimony provided by the respondent, it appears that on no count she is ready to reside with the petitioner as his wife. Not only the learned trial court has rightly dissolved marital bond of the couple but this court too provided ample opportunity to the parties to bridge their differences but to no avail, therefore, the decree of dissolution of marriage is hereby maintained.

6. Now we come to the important question of the case which learned counsel for the petitioner vigorously argued that in case the respondent is not willing to reside with the petitioner then she be directed to return him the benefits she has received in consideration of her marriage. Record shows that marriage between the parties had taken place on 14.04.1994 and out of the wedlock the couple was blessed with a son and daughter. Meaning thereby that the respondent has served the petitioner for about 18/19 years till the decree of dissolution. She has spent her prime age in the company of the petitioner and by now depriving her of the benefits she has received from the petitioner in 1994 would not be fair enough. Record also shows that the petitioner has compelled the respondent to go for litigation for her right. Had he opted to enter into a deal with her the moment dissolution suit was filed, consequences would have been different but after a prolong litigation of seven (07) years, it does not sound well for the petitioner to demand from the respondent to return him the benefits he had given her in 1994.

7. The learned trial court has given sound reason for disentitling the petitioner from the benefits he had given to the respondent at the time of her marriage with him to which no exception could be taken by this court while exercising its jurisdiction under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973.

8. For what has been discussed above, this petition, being bereft of any merit, is hereby dismissed.

MQ/348/P Petition dismissed.

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